

## 24STLC07134 24STLC07134

County: los-angeles

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Case Number: 24STLC07134 Hearing Date: September 23, 2026 Dept: 26

### TENTATIVE RULING:

Plaintiff Mary Diaz Alvarado's Motion For (1) Leave To File

First Amended Complaint; (2) Reclassification Of Action From Limited To Unlimited Jurisdiction; (3) Continuance Of Trial And All Related Dates; and (4) Relief From Jury Waiver, is denied as to leave to amend, reclassification, and continuance of the trial and related dates. The Court grants the request for relief from waiver of a jury trial.

Plaintiff is ordered to post jury fees within five days of the date of this Order. Failure to post fees within that time will result in waiver that will not be excused.

### Analysis:

Plaintiff Mary Diaz Alvarado ("Plaintiff") brought this action for breach of motor vehicle negligence against Defendant Stephanie Anne Bentvsi ("Defendant") on October 2, 2024. Trial in the matter was scheduled for April 1, 2026. Defendant filed an Answer on March 10, 2025. On February 10, 2026, the parties filed a stipulation to continue the trial date to August 17, 2026, with discovery and motion deadlines to follow.

Plaintiff filed the instant Motion For (1) Leave To File First Amended Complaint; (2) Reclassification Of Action From Limited To Unlimited Jurisdiction; (3) Continuance Of Trial And All Related Dates; and (4) Relief From Jury Waiver on July 29, 2026. On August 4, 2026, the Court granted Plaintiff's ex parte application to continue the trial date to November 20, 2026 and ordered that any request to continue discovery or motion cut-off dates must be made by noticed motion or stipulation. (Minute Order, 08/04/26.) Defendant filed an opposition to the instant Motion on September 9, 2026.

## Motion for Leave to Amend and to Reclassify Action

The request for

leave to amend is brought pursuant to Code of Civil Procedure section 473, subdivision (a), which provides

that “[t]he court may, in furtherance of justice and on any terms as may be proper, allow a party to amend any pleading...” (Code Civ. Proc., § 473, subd.

(a)(1).) A motion for leave to amend a pleading must also comply with the procedural requirements of California Rules of Court, Rule 3.1324, which requires a supporting declaration to set forth explicitly what allegations are to be added and where, and when the new evidence was discovered warranting the amendment and why the amendment was not made earlier. The motion must also include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines of the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (Cal. Rules of Court, Rule 3.1324, subds. (a), (b).)

The policy

favoring amendments and resolving all matters in the same dispute is “so strong that it is a rare case in which denial of leave to amend can be justified.

[Citation.]” (Howard v. County of

San Diego (2010) 184 Cal.App.4th 1422, 1428.) “Although courts are

bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial

[citations], this policy should be applied only ‘where no prejudice is shown to the adverse party . . . . [citation]. A

different result is indicated ‘where inexcusable delay and probable prejudice

to the opposing party’ is shown. [Citation].” (Magpali v. Farmers Group (1996) 48 Cal.App.4th 471, 487.)

Where a proposed amendment opens an entirely new substantive area of injury on the eve of trial without any explanation for why the major change had not been made long before, denial of leave is appropriately within the court’s discretion. (Id.)

Plaintiff requests leave to amend to allege “previously

undiscovered symptoms” and to change the amount of damages alleged as a result of the motor vehicle accident. According to the supporting declaration, Plaintiff’s counsel only became aware of these symptoms—restless sleep, pain when sitting for prolonged periods, headaches, and fear associated with driving,

particularly for extended periods—the week before the instant Motion was filed.

(Motion, von Schulz Decl., ¶4.) Plaintiff's counsel declares that these symptoms substantially affect Plaintiff's quality of life and ability to work, including her ability to maintain her prior work schedule. (Ibid.) The declaration also states that Plaintiff continues to experience ongoing neck pain, right-knee pain, and lower-back pain. (Ibid.)

Defendant, in opposition, contends that the allegedly newly discovered symptoms were already known and addressed as to their scope and persistence during Plaintiff's deposition, which was taken on July 15, 2025, almost two years after the August 21, 2023 collision.

In support, Defendant attaches excerpts from the deposition. The excerpts do not reflect that all of the newly discovered symptoms were addressed at the time. Plaintiff did testify that the position in which she was sitting made her neck pain worse, and to continuing knee, back, and neck pain at that time. (Id. at Exh. A, pp. 25-29; 27:15-16.) The excerpts, however, do not reflect testimony about headaches, difficulty sleeping, fear of driving, or missing work as a result of the injuries (rather than for medical appointments). (See id. at Exh. A.) Thus, at least some of the matters raised now, are newly raised.

The Court denies leave to amend for failure to comply with the requirements of California Rules of Court, Rule 3.1324, or to otherwise demonstrate that leave should be granted. The supporting declaration does not set forth explicitly what allegations are to be added and where, nor does the Motion specify by reference to pages and lines what allegations would be deleted and added. (See Cal. R. Ct., rule 3.1324(a).) Rather, the Motion attaches only a copy of the proposed amended Complaint which, unlike the initial Complaint, is submitted using a court form. (Notice of Motion, pp. 4-6.)

Further, the Court rule requires the motion to include a declaration specifying, among other things, when the facts giving rise to the amended allegations were discovered, and the reasons why the request was not made earlier. (Cal. R. Ct., rule 3.1324(b)(3)-(4).) Plaintiff's motion is supported by the declaration of counsel, Gustav Alexander Von Schulz. That declaration states only that counsel became aware of the additional alleged symptoms and limitations "within the past week," but does not offer any explanation for the failure to raise or disclose these facts more promptly. (Mot., Schulz Decl., ¶4.) The nature and duration of

Plaintiff's injuries were clearly within her knowledge. No declaration from Plaintiff herself is included, nor is the Motion supported by any evidence, such as medical records, to show the dates, frequency, or severity of the symptoms or when they arose. The sudden discovery of these undocumented symptoms and life impacts three weeks before the August 17, 2026 trial date is not sufficiently supported to justify leave to amend. (*Miles v. City of Los Angeles* (2020) 56 Cal. App. 5th 728, 739 ("unwarranted delay justifies denial of leave to amend"); *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613 (it "is well settled that a long deferred presentation of the proposed amendment without a showing of excuse for the delay is itself a significant factor to uphold the trial court's denial of the amendment").)

Further, "the liberal policy favoring leave to amend applies only where no prejudice is shown to the adverse party." (*Miles*, 56 Cal. App. 5th at 739 (cleaned up).) "Prejudice exists where the proposed amendment would require delaying the trial, resulting in added costs of preparation and increased discovery burdens." (*Id.*) So here. Discovery was complete as to Plaintiff's injuries. She had the opportunity to testify to them, and did, at her deposition, which was held more than a year ago and which was more than two years after the collision at issue. Waiting until three weeks before trial to raise alleged additional, late-arising injuries entirely within the Plaintiff's knowledge, is unduly prejudicial to the defendant. The Court agrees with Defendant that simply continuing the trial date over Defendant's objection does not cure the prejudice; it compounds the negative effects of Plaintiff's unjustified delay.

#### Motion for Reassignment

The Court also denies the motion for reclassification to unlimited civil court. The motion to reclassify is brought pursuant to Code of Civil Procedure section 403.040, which allows a plaintiff to file a motion for reclassification of an action within the time allowed for that party to amend the initial pleading. (Code Civ. Proc., § 403.040, subd. (a).) If the motion is made after the time for the plaintiff to amend the pleading, the motion may only be granted if (1) the case is incorrectly classified; and (2) the plaintiff shows good cause for not seeking reclassification earlier. (Code Civ. Proc., § 403.040, subd. (b).) In *Walker v. Superior Court* (1991) 53 Cal.3d 257, the California Supreme Court held that a matter may be reclassified from unlimited to limited only if it appears to a legal certainty that the plaintiff's damages will necessarily be less than the jurisdictional limit. (*Walker v.*

Superior Court (1991) 53 Cal.3d 257, 262.) The jurisdictional limit, effective January 1, 2024, is \$35,000.00. (Code Civ. Proc., § 85, subd. (a).)

In *Ytuarte v.*

Superior Court (2005) 129 Cal.App.4th 266, 278, the Court of Appeals examined the principles set forth in *Walker* and held that to reclassify in the opposite direction – from limited to unlimited – “the court should reject the [movant]’s effort to reclassify the action as unlimited only when the lack of jurisdiction as an ‘unlimited’ case is certain and clear.” (Id. at 279.) The moving party “must present evidence to demonstrate a possibility that the damages will exceed [the jurisdictional limit]. If a jurisdictionally appropriate verdict may result, (i.e., if such a verdict is not virtually unobtainable) the court should grant the motion to reclassify the case as “unlimited.” (Ibid.)

This burden is not met here. The request to reclassify the action relies on the “previously undiscovered symptoms” and their impacts on Plaintiff’s life discussed above. But, the supporting declaration, which the Court identified as insufficient to support amendment, makes no mention of the damages Plaintiff has incurred as a result of her injuries and general pain and suffering. A conclusory statement that “these symptoms and functional limitations have substantially affected Plaintiff’s quality of life and ability to work” without any supporting medical records or invoices is not evidence that demonstrates a possibility that Plaintiff’s damages will exceed \$35,000.00. Accordingly, the request to reclassify the action is also denied.

Motion to  
Continue Trial Date

Plaintiff’s request

to continue the trial date and related motion and discovery cut-offs is premised on amending the Complaint and reclassifying the action. Plaintiff moves pursuant to Cal. Rules of Court rule 3.1332, which provides “[a]lthough continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The Court may grant a continuance only on an affirmative showing of good cause requiring the continuance.” (Cal. Rules of Court, Rule 3.1332, subd. (c).) Grounds for a continuance include the unavailability of trial counsel because of death, illness, or other excusable circumstances. (Cal. Rules of Court, Rule 3.1332, subd. (c)(3).)

The court may look to the following factors in determining whether a trial continuance is warranted: (1) proximity of the trial date; (2) whether there was any previous continuance of trial due to any party; (3) the length of the continuance requested; (4) the availability of alternative means to address the problem that gave rise to the motion; (5) the prejudice that parties or witnesses will suffer as a result of the continuance; and (6) whether trial counsel is engaged in another trial. (See generally, Cal. Rules of Court, Rule 3.1332, subd. (d)(1)-(11).) Additional factors for the court to consider include: a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; whether all parties have stipulated to a continuance; and any other fact or circumstance relevant to the fair determination of the motion or application. (Cal. Rules of Court, Rule 3.1332, subds. (c), (d).)

Trial in this action has been continued three times already and a continuance is now opposed by Defendant. Also, in light of the Court's denial of the Motion to Amend and Reclassify, the Court finds no good cause to continue the trial or related dates.

Motion for Relief  
from Waiver of Jury Trial

The Motion is brought pursuant to Code of Civil Procedure section 631, which states in relevant part that "[a] party waives trial by jury in any of the following ways: . . . (5) By failing to timely pay the fee described in subdivision (b), unless another party on the same side of the case has paid that fee." (Code Civ. Proc., § 631, subd. (f).)

In this case, Defendant demanded a jury trial and paid jury fees, but Plaintiff did not pay jury fees, which is a waiver under § 631(f). Defendant no longer wishes to proceed by jury trial. Plaintiff asks the Court to exercise its discretion to allow a trial by jury despite Plaintiff's waiver, stating that the waiver was "inadvertent." (See Code Civ. Proc., § 631(g).)

As the Court of Appeals has held, "[t]he court abuses its discretion in denying relief where there has been

no prejudice to the other party or to the court from an inadvertent waiver.” Gann v. Williams Bros. Realty, Inc. (1991) 231 Cal. App. 3d 1698, 1704 (internal citations omitted). Relevant prejudice may include “delay in rescheduling jury trial, lack of funds, timeliness of the request and prejudice to the litigants.” (Id.)

The Court will grant relief. Defendant’s opposition does not identify any particular prejudice from the granting of relief, other than to state that “Defendant has prepared the matter in its existing procedural posture.” (Opp., p. 12.) Defendant’s other arguments in opposition all concern the combined effect of granting relief from waiver in addition to the other relief sought by Plaintiff, i.e. “amendment, reclassification, continuance, and restoration of Plaintiff’s jury right.” (Id. (emphasis added)). This is not sufficient. The other relief sought has not been granted, negating much of the basis for the claim of prejudice. Trial is scheduled for November 20, 2026. The parties have sufficient time to modify their trial preparation and prepare jury instructions and other documents necessary for a jury trial. As set forth below, however, Plaintiff must pay the jury fees within five days of this Order. Failure to timely pay the fees will result in waiver that will not be excused.

#### Conclusion

Plaintiff Mary Diaz Alvarado’s Motion For (1) Leave To File First Amended Complaint; (2) Reclassification Of Action From Limited To Unlimited Jurisdiction; (3) Continuance Of Trial And All Related Dates; and (4) Relief From Jury Waiver, is denied as to leave to amend, reclassification, and continuance of the trial and related dates. The Court grants the request for relief from waiver of a jury trial. Plaintiff is ordered to post jury fees within five days of the date of this Order. Failure to post fees within that time will result in waiver that will not be excused.

Moving party to give notice.